

TRYON v ANGELS GUN CLUB, INC.

17CV42160

CROSS-COMPLAINANT’S MOTION TO SPECIALLY SET CROSS-ACTION FOR TRIAL

This case involves a lengthy land dispute. Plaintiff /Cross-Defendant Thomas Tryon (“Tryon”) owns property in Calaveras County, California, identified as Assessor’s Parcel Number (“AFN”) 064—005-007 (“Tryon Property”). Defendant/Cross-Complainant Angels Gun Club, Inc. (“Gun Club”) is a California non-profit corporation that owns real property in Calaveras County identified as APN 064-006-008; 064-006-007; and 064-005-031 (“Gun Club Property”) on which it operates a target and shooting range.

Tryon filed a complaint against Gun Club alleging that the operation of the facility was resulting in overshooting on his land and lead contamination on his property; Gun Club cross-complained. Tryon dismissed his causes of action against Gun Club and at that time the trial date was vacated.

On January 19, 2024, the Court granted Gun Club’s request to file a Fourth Amended Cross Complaint in which it echoed much of the earlier Cross-Complaints but sought to add additional Cross-Defendants.

Now before the Court is Gun Club’s motion to specially set the cross-action for trial before expiration of the 5-year statute under Code of Civil Procedure 583.310. Cross-Defendants oppose the motion.

I. Background

On or about, September 4, 1984, Tryon and Gun Club entered into an agreement that provided for Gun Club to purchase such real property known as the Tracy Quartz Mine, and identified as APN 064-006-007, portions of which were to be transferred to Tryon in exchange for land owned by the Gun Club (“Land Swap Agreement”, Third Amended Complaint, Ex. C.) In exchange, the Agreement provided for Tryon to transfer to Gun Club a portion of real property, identified as Parcels A and C in the Land Swap Agreement. Tryon and his family would be allowed to have access to Parcel A for grazing purposes, range improvement purposes, construction of dam upon Indian Creek, and mineral mining without charge to Tryon.

Apparently deeds for the property swaps were never recorded. At some point in 2005, Tryon allegedly met with the Gun Club Board of Directors and agreed that he would sign any necessary deed documents but that said documents could not be recorded because they contemplated grazing rights. Gun Club alleges that to date the Tryon family has not transferred title to Parcels A and C. However, pursuant to the terms of the Land Swap Agreement, the Gun Club has “regularly and continuously engaged in the shooting of trap and skeet on its property.” (FACC ¶ 16.)

Gun Club alleges that the Tryon unilaterally expanded the scope of the Land Swap Agreement by renting or assigning his family’s grazing rights to unknown third parties. Gun Club further alleges that Tryon has impermissibly trespassed and interfered with the Gun Club’s use of the property.

II. Legal Standard and Analysis

Code of Civil Procedure (“CCP”) section 583.310(a) provides that “an action shall be brought to trial within five years after the action is commenced against the defendant.” Subsection (b) provides that the requirement of dismissal is mandatory and “not subject to extension, excuse, or exception except as expressly provided by statute.”

The cross-complaint was originally filed on January 15, 2019, meaning that a trial date needed to commence within five years or by January 15, 2024. That statutory period was extended 6 months, however, pursuant to California Rules of Court, Appen. I, Emergency Rule 10(a), passed by the California Judicial Council during the COVID pandemic. As a result, the date by which this cross-action must be brought to trial is extended to July 15, 2024.

Recognizing that time is running on its claims, Gun Club brings this motion pursuant to CCP section 36(e) which states:

Notwithstanding any other provision of law, the court may in its discretion grant a motion for preference that is supported by a showing that satisfies the court that the interests of justice will be served by granting this preference.

If the court grants a motion for trial preference under CCP § 36(e), then it must set trial “not more than 120 days from that date and there shall be no continuance beyond 120 days from the granting of the motion for preference except for physical disability of a party or a party’s attorney, or upon a showing of good cause stated in the record.” (CCP § 36(f).)

A motion for preferential trial setting raises the same issues for the trial court as a motion to dismiss for failure to prosecute. (*Wilson v. Sunshine Meat Liquor Co.* (1983) 34 Cal.3d 554, 561.) The *Wilson* court further stated:

In passing upon a motion for an early and preferential setting, the court was not limited to a consideration of the single fact that the five-year period was about to expire but was required to view the total picture, including the dilatory action of the plaintiff, the condition of the court's calendar, the rights of other litigants, and the prejudice to the defendant resulting from the delay. (*Wilson, supra* 34 Cal.5d at 561.)

Gun Club argues that the motion should be granted because it has not been dilatory, the court's calendar will not be overburdened, and the other litigants will not be prejudiced by a trial commencing before July 15, 2024. Specifically, Gun Club argues that after Tryon dismissed the underlying action, he represented to Gun Club that the Tryon family would honor the Land Swap Agreement and sign the grant deeds. (Declaration of Clay D. Dillashaw ("Dillashaw Decl.") ¶ 2.) Gun Club argues that based on that representation, it did not believe it would need to continue prosecuting the cross-action to trial. (*Id.* ¶3.) According to Gun Club, it was not until November 2023 (fifteen months later) that Tryon informed Gun Club that he would not honor the Land Swap Agreement. (*Id.* ¶ 5.)

Gun Club further argues that the other litigants will not be prejudiced by the granting of this motion. Specifically, Gun Club asserts that the Tryon family has "no one but themselves for the fifteen months they 'lost' between August 2022 and November 2023, while they stalled, delayed, and ultimately refused to sign the grant deeds." (Mtn p. 2.) Further, Gun Club argues that in the six months since active litigation has resumed, the Tryon family has "spent their entire time throwing up procedural roadblocks and obstacles to Gun Club's efforts to refine their claims, and have made no effort whatsoever to take any additional discovery." (*Ibid.*) Finally, Gun Club asserts that the remaining issues do not require a trial by jury, are relatively simple, and could be completed in a one day bench trial.

In opposition, Tryon points out that after the underlying complaint was dismissed and the trial was vacated, Gun Club failed to make any objection or to set a new trial date for the issues in their cross-action. (Declaration of Donald B. Mooney ("Mooney Decl.") ¶ 6.) Cross-Defendants point out that there are only two remaining causes of action: 1) a declaration that Tryon has extinguished an alleged license associated with Parcels A, B and C, and 2) an injunction against Tryon regarding a dispute about access to Parcels A, B and C. However, neither of these causes of action had anything to do with Tryon's purported representations that he would comply with the Land Swap Agreement. Accordingly, Cross-Defendants argue that even if Tryon made any representations, those representations would only have gone to the breach of contract claim and Gun Club would still have needed to pursue its cross-action for the remaining causes of action.

Perhaps more importantly, Cross-Defendants argue that they will suffer significant prejudice if the Court allows a trial to commence on or before July 14, 2024. They point out that as of the date of the motion, there are only 17 days (and only 10 court days) until July 15, 2024. Cross-Defendants argue that in this short time frame there may not be adequate time to prepare for trial, ensure that witnesses will be available, and to provide notice and/or subpoena witnesses. They further point out while courts have held that periods ranging from 28 days to 46 days before the expiration of the five year period provided sufficient time within which to at least begin trial, here there is less than half of that time remaining. (See e.g., *Dick v. Superior Court* (1986) 185 Cal.App.3d 1159, 1166 [citation omitted] [28 days sufficient time]; *Vogelsang v. Owl Trucking Co.* (1974) 40 Cal.App.3d 1068, 1072 [46 days sufficient time].) Finally, counsel for Cross-Defendants asserts that he has other impending hearings in Sacramento and Shasta County and an extensive appellate brief due by July 15, 2024 under the CEQA Streamlining provisions.

The Court notes that the traditional reasons for setting trial preference -- a party's health, age or other condition -- are not present here (see CCP sections 36(a) to (d).) Rather, the Court may only grant the Gun Club's motion if it is "supported by a showing that satisfies the court that the interests of justice will be served by granting this preference." (*Id.*, section (e).) Dismissal-for-delay statutes serve to "discourage stale claims" and "compel reasonable diligence in the prosecution of actions, thereby expediting the administration of justice. [citations omitted]" (*Schumpert v. Tishman Co.*, (1988), 198 Cal.App.3d 598, 602.) However, "balanced against these considerations is, of course, the strong public policy which seeks to dispose of litigation on the merits rather than on procedural grounds." (*Ibid.*) While the latter policy is often viewed as more compelling, "it will not prevail unless the plaintiff meets his burden of establishing excusable delay. [citations omitted]." (*Ibid.*)

Gun Club has had nearly five years to bring their cross-action to trial. At the time that the underlying complaint was dismissed, it did not object to the trial date being vacated and did not seek to obtain a new trial date. Even assuming that Tryon's misrepresentations were a reasonable source of Gun Club's delays, by its own admission Gun Club was aware that Cross-Defendants were not going to sign the deeds by November of 2023. Nonetheless, Gun Club waited approximately six months, and only one month before the five year deadline, to bring its motion. The Court finds such delay unreasonable. Further, the Court agrees with Cross-Defendants that the extremely short time period to prepare for trial is prejudicial, particularly given that the FACC filed in January 2024 added new defendants. Additionally, the Court notes that cross-defendant has no idea of the burden that setting even a one day bench trial would impose on a two-judge Court, which the Court notes would be significant.

Accordingly, Gun Club's motion is **DENIED**.

The Clerk shall provide notice of this Ruling to the parties forthwith. Cross-Defendants to submit a formal Order pursuant to Rule of Court 3.1312 in compliance with this Ruling.

**IN RE: THIRTY TWO THOUSAND DOLLARS (\$32,000.00)
CURRENCY OF THE UNITED STATES**

22CV45789

PETITIONER'S MOTION FOR FORFEITURE JUDGMENT

On March 2, 2021, the Calaveras County Sheriff's Department served a search warrant at 5691 McCauley Road, Valley Springs, Calaveras County, California. A man named Yen-Hsiang Yang was inside the house. During the search, officers found several plastic baggies of US Currency (totaling \$30,800.00) bundled together with colored rubber bands hidden between a mattress and bed frame. On top of the mattress was Yen-Hsiang Yang's wallet along with his Taiwanese passport and international driving permit. There was an additional \$1,200.00 U.S. Currency in Yang's wallet bringing the total amount of U.S. Currency found to \$32,000.00.

On March 2, 2021, Yen-Hsiang Yang was personally served with a Receipt for Seizure of Property, Notice of Seizure and blank Judicial Council Form MC200 "Claim Opposing Forfeiture." The same three documents were also sent to Yen-Hsiang Yang via certified USPS mail on May 30, 2023, along with the Petition for Forfeiture of Property. USPS tracking shows the letter was delivered on June 14, 2023. The same documents were also served on the listed property owner, Sean Hin-Yu Lee, and according to USPS tracking, the documents were delivered on November 9, 2023.

During review of PGE records for 5691 McCauley Road, a PGE account in the name of Jie Long Yu, with listed address of 877 Devonshire Ave., San Leandro, CA 94579, was located. Thereafter, the People mailed the documents to Jie Long Yu and on January 23, 2024, filed proof of service.

The Notice of Forfeiture was published in the Valley Springs News pursuant to Health and Safety Code section 11488.4(e) beginning April 9, 2021 once per week for three (3) consecutive weeks. To date no claims have been filed in this case.

A companion criminal case was filed against Yen-Hsiang Yang in case number 21F8122. (Exhibit K.) On August 17, 2021, Yen-Hsiang Yang's criminal defense attorney informed the Court that Yang had voluntarily deported himself out of the country. A bench warrant was ordered and remains to this day. (Exhibit L.)

Legal Standard and Analysis

Health and Safety Code section 11488.4 sets forth the procedures for forfeiture: subsection (a) provides that the District Attorney shall file petition for forfeiture with the Superior Court of the county in which the defendant has been charged with the underlying offense or in which the property has been seized. Thereafter, the District